

1.

| CASE #      | CASE NAME                  | HEARING NAME                                                                    |
|-------------|----------------------------|---------------------------------------------------------------------------------|
| CVRI2302215 | COPLEY VS JOHNSON,<br>M.D. | PLAINTIFF'S MOTION FOR<br>PREJUDGMENT INTEREST<br>PURSUANT TO CIVIL CODE § 3291 |

**Tentative Ruling:** Hearing is vacated as moot.

2.

| CASE #      | CASE NAME                  | HEARING NAME                           |
|-------------|----------------------------|----------------------------------------|
| CVRI2302215 | COPLEY VS JOHNSON,<br>M.D. | MOTION TO CONFORM<br>JUDGMENT TO MICRA |

**Tentative Ruling:** Hearing is vacated as moot.

3.

| CASE #      | CASE NAME                  | HEARING NAME        |
|-------------|----------------------------|---------------------|
| CVRI2302215 | COPLEY VS JOHNSON,<br>M.D. | MOTION TO TAX COSTS |

**Tentative Ruling:** Memorandum of Costs is stricken. Hearing is vacated as moot.

4.

| CASE #      | CASE NAME      | HEARING NAME                    |
|-------------|----------------|---------------------------------|
| CVRI2203209 | WYNNE V. WYNNE | MOTION TO DISQUALIFY<br>COUNSEL |

**Tentative Ruling:** Defendant/Cross-Complainant James Wynne, and Defendant A. Scott Kalkware, personal representative of the Estate of Francis Marsh's Motion to Disqualify Counsel Sarnowski is granted.

Plaintiff/Cross-Defendant Kim Wynne, individually and as successor in interest to Mark Wynne, and Cross-Defendants W. Scott Tatum and Jodi V. Schmaltz Tatum's Motion to disqualify Counsel Lucal is denied.

A trial court's authority to disqualify an attorney derives from its inherent power to "control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." (Code Civ. Proc., § 128(a)(5); see *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145 (*Speedee*); see also *Oaks Management Corp. v. Sup. Ct.* (2006) 145 Cal.App.4th 453, 462.)

A disqualification motion involves a conflict between a client's right to counsel of his or her choice, on the one hand, and the need to maintain ethical standards of professional